

**\*HEARING ON MOTION IN RE: DEF MTN TO COMPEL DEPO ATTEND/TEST OF JASON GILL IN ALT PERSON MOST KNOWLEDGEABLE FILED BY DEF  
FILED BY: GUANZON, ANA M**

**\*TENTATIVE RULING:\***

Disposition

Parties, at the 1/15/26 CMC, indicated the deposition of the witness at issue in this motion would occur on 1/19/26. This court finds this motion to now be moot.

This motion will be dropped from calendar.

**5. 9:00 AM CASE NUMBER: L25-01668**

**CASE NAME: FARIBORZ GHORBAN VS. VICTOR OSORIA**

**\*HEARING ON MOTION IN RE: TO CORRECT CASE CLASSIFICATION FROM LIMITED TO UNLIMITED  
FILED BY: GHORBAN , FARIBORZ**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed, on November 14, 2025, a Motion to modify the classification of the matter from Limited Civil to Unlimited Civil. The Hearing is scheduled for January 27, 2026.

The Motion is unopposed yet there is no proof that notice has been provided to Defendant.

Analalysis

Motion continued for 30 to 60 days for Plaintiff to provide notice to Defendant.

Plaintiff to file Order and notify of Defendant of subsequent hearing date.

**6. 9:00 AM CASE NUMBER: L25-03141**

**CASE NAME: PORTFOLIO RECOVERY ASSOCIATES LLC VS. ERICK OCHOA**

**\*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION  
OF TRUTH OF FACTS BE DEEMED ADMITTED**

**FILED BY: PORTFOLIO RECOVERY ASSOCIATES LLC**

**\*TENTATIVE RULING:\***

*This matter is no longer on calendar.*

**7. 9:00 AM CASE NUMBER: L25-08787**

**CASE NAME: ODK CAPITAL, LLC VS. RESONANCE EXECUTIVE LLC**

**\*HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AMD TO STAY ACTION**

**FILED BY: KIMBLE, DANIEL**

**\*TENTATIVE RULING:\***

**Background**

*Defendant filed a motion to compel arbitration and stay the action.  
Plaintiff, on 12/29/25, filed notice of non-opposition and further requested Stay or Dismissal.*

**Disposition**

*Defendant's Motion is granted.  
Case will be dismissed, upon request of Plaintiff.*

**8. 9:00 AM CASE NUMBER: L25-08939  
CASE NAME: CAPITAL ONE, N.A. VS. MICHELLE BEN  
\*HEARING ON MOTION IN RE: SET ASIDE DEFAULT  
FILED BY: BEN, MICHELLE Y  
\*TENTATIVE RULING:\***

**Background**

Defendant filed, on December 8, 2025, a Motion to Set Aside Default, claiming a lack of actual notice under Sections 473(b) and 473.5 of the Code of Civil Procedure.

The Default Judgment was filed November 20, 2025.

Plaintiff filed a timely response.

**Analysis**

Defendant claims that they were never personally served with the Summons or Complaint, prior to the entry of the default judgment.

Plaintiff filed a Proof of Service, on November 20, 2025, indicating personal service on a Michelle Y. Ben, who confirmed their identity. The service was effected on September 7, 2025, and was completed by a registered process server.

This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Moreover, the service was effected at the same address as listed on the account statement for Defendant, a copy of which was included in Plaintiff's response.

**Disposition**

Defendant's Motion is denied.

Plaintiff to file Order.